

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: March 16, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	A Plus Autobody, Inc. vs. Ly 30-2022-01275076	There is no full written tentative ruling at this time and the court will hear from the parties or their counsel at oral argument. The court provides the following summary tentative ruling to provide guidance: <u>Petition to Confirm Arbitration Award and Petition to Vacate Arbitration Award</u> Plaintiff A Plus Autobody, Inc.'s Petition to Confirm Contractual Arbitration Award is GRANTED. Defendant Trinh To Thi Ly's Petition to Vacate Arbitration Award is DENIED. The Final Arbitration Award of the Hon. Jacqueline A. Connor, Judge of the Superior Court (Ret.) is CONFIRMED. Judicial review of binding arbitration awards is generally limited to the statutory grounds for vacating or correcting an award. (<i>Moshonov v. Walsh</i> (2000) 22 Cal.4th 771, 775.) Generally, a court may not vacate or correct an award because of the arbitrator's legal or factual error, even if the error appears on the face of the award. (<i>Ibid.</i>) In addition, arbitrators do not exceed their powers within the meaning of Civil Procedure Code section 1286.2(a)(4) merely by rendering an erroneous decision on a legal or factual issue, so long as the issue was within the scope of the of the controversy submitted to the arbitrators. (<i>Ibid.</i>) The Defendants' motion is devoted to the argument that Judge Connor made several mistakes of law, which is not grounds to vacate the arbitration award. (See <i>Moncharsh v. Heily & Blase</i> (1992) 3 Cal.4th 1, 11 ["Thus, it is the general rule that, with narrow exceptions, an arbitrator's decision cannot be reviewed for errors of fact or law."].) Defendants do contend that Judge Connor exceeded her power by awarding damages that exceed the statement of claim submitted by Plaintiff. However, this argument is based on evidence supplied with Defendants' reply, which the court normally cannot consider.
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		In any case, the evidence does not support Defendants' argument that Judge Connor exceeded her powers. ADR Rule 6 states that "No claim, remedy, counterclaim, or affirmative defense will be considered by the arbitrator in the absence of such prior notice which is to be provided no later than ninety (90) calendar days before the initial date for arbitration" (Rosenstein Decl., Exh. A.) However, ADR Rule 35(d) states that "The arbitrator may grant any remedy or relief that the arbitrator deems just and equitable and within the scope of the agreement of the parties" (<i>Ibid.</i>) The record shows that Defendants were given notice of Plaintiff's request for damages based on the lost opportunity to sell its business by Plaintiff's arbitration briefs, and did not object in their closing brief or their reply brief. (See ROA #424.) "A party cannot wait until after an award is made to claim that an issue expressly presented to the arbitrator for decision is beyond his [or her] authority." (<i>J.C. Gury Co. v. Nippon Carbide Indus. (USA) Inc.</i> (2007) 152 Cal.App.4th 1300, 1302.) Plaintiff shall give notice of this ruling.
2	William N. Langstaff Professional Dental Corporation vs. Swope 30-2024-01439562	<u>Motion to Be Relieved As Counsel</u> Counsel MBK Chapman PC's Motion to Be Relieved as Counsel – Civil is taken OFF CALENDAR pursuant to the Notice of Withdrawal of Motion to Be Relieved as Counsel Scheduled for March 16, 2025 (ROA #159), filed December 9, 2025.
3	Thomson vs. Toyota Motor Sales, U.S.A., Inc. 30-2025-01498771	<u>Demurrer</u> Defendant Toyota Motor Sales, U.S.A., Inc.'s Demurrer to Plaintiff's Complaint is SUSTAINED with 22 days leave to amend as to the 6th Cause of Action.

		If Plaintiff Terrell Thompson does not amend the Complaint for Violation of Statutory Obligations within the period of time stated above, Defendant Toyota Motor Sales, U.S.A., Inc. shall file an answer or other pleading in response to the remaining causes of action of the Complaint for Violation of Statutory Obligations within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j).) <u>Pending Motion</u> Defendant Toyota Motor Sales, U.S.A., Inc. (Defendant Toyota) demur to the 6th Cause of Action of the Complaint for Violation of Statutory Obligations (Complaint) Filed by Plaintiff Terrell Thompson. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413).
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		Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>6th Cause of Action (Fraudulent Inducement Concealment)</u> "[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (<i>Boschma v. Home Loan Center, Inc.</i> (2011) 198 Cal.App.4th 230, 248.) <u>Duty to Disclose</u> In order to hold a defendant liable for the nondisclosure of facts, a plaintiff must show that the defendant was under a legal duty to disclose those facts. (<i>Warner Constr. Corp. v. City of Los Angeles</i> (1970) 2 Cal.3d 285, 294.) The Court of Appeal has stated that "[a] duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as 'seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement.'" (<i>Shin v. Kong</i> (2000) 80 Cal.App.4th 498, 509, quoting <i>Wilkins v. National Broadcasting Co.</i> (1999) 71 Cal.App.4th 1066, 1082.) As the Court of Appeal explained in <i>Bigler-Engler v. Breg, Inc.</i> (2017) 7 Cal.App.5th 276: Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a "transaction" between the plaintiff and defendant: "In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the
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		defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff.” (<i>Id.</i> at p. 311, quoting <i>Warner Construction Corp. v. City of Los Angeles</i> (1970) 2 Cal.3d 285, 294, footnotes omitted.) According to the <i>Bigler-Engler v. Breg, Inc.</i> Court, “[s]uch a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (<i>Bigler-Engler v. Breg, Inc.</i>, <i>supra</i>, 7 Cal.App.5th at p. 312). Here, Defendant Toyota contends that the 6th Cause of Action fails because the Complaint does not allege the direct transactional relationship required by <i>Bigler-Engler v. Breg, Inc.</i> In that case, “[the defendant] did not transact with [the plaintiff] in any way.” (<i>Id.</i> at p. 314.) Further, “[the plaintiff] obtained her Polar Care device from [one third-party], based on a prescription written by [another third-party], all without [the defendant’s] involvement.” (<i>Ibid.</i>) Under those circumstances, the Court of Appeal held that there was no duty to disclose. (See <i>id.</i> at pp. 314-315.) This case, by contrast, does not involve a relationship between the manufacturer and the general public. Instead, the Complaint alleges that there was a relationship between Plaintiff and with Defendant Toyota, because Defendant Toyota offered a warranty to Plaintiff. (See Compl., ¶ 7.) Thus, unlike in <i>Bigler-Engler v. Breg, Inc.</i>, there was a transaction directly between Plaintiff and Defendant Toyota. This reasoning was confirmed in <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828. In that case, which was a Song-Beverly action similar to this one, the Court of Appeal held that a car buyer need not allege a contract with the manufacturer in order to allege a duty to disclose:
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		Nissan argues Plaintiff did not adequately plead the existence of a buyer-seller relationship between the parties, because Plaintiff bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude Plaintiff' allegations are sufficient. Plaintiff alleges that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold Plaintiff' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects. (<i>Id.</i> at 844). In <i>Rattagan v. Uber Technologies, Inc.</i>, the Supreme Court held that "[a] plaintiff may assert a fraudulent concealment cause of action based on conduct occurring in the course of a contractual relationship if the elements of the claim can be established independently of the parties' contractual rights and obligations, and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract." (<i>Rattagan v. Uber Technologies, Inc.</i>, <i>supra</i>, 17 Cal.5th at p. 13). However, <i>Rattagan v. Uber Technologies, Inc.</i> is not a Song-Beverly action and the holding is focused on circumstances that are different from those found in a Song-Beverly action. In fact, the Supreme Court made it clear that its holding did not affect the ruling in <i>Dhital v. Nissan North America, Inc.</i> (See <i>id.</i> at p. 41, fn. 12 ["This court has granted review in two other cases — <i>Dhital v. Nissan North America, Inc.</i> [] and <i>Kia America v. Superior Court</i> [] — both of which involve claims of fraudulent inducement by concealment claims as well as the potential interplay with remedies available under the Song-Beverly Consumer Warranty Act (Civ. Code, § 1791 et seq.). We do not address these issues here."].) This was because, while "Rattagan's tort claims are, of course, based on alleged conduct committed <i>during</i> the contractual relationship but
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		purportedly outside the parties' chosen rights and obligations," (<i>ibid.</i>, italics original), the claims in <i>Dhital v. Nissan North America, Inc.</i> were based on allegations that plaintiff was fraudulently induced to enter into the contract (i.e., conduct occurring before there was any relationship), (<i>Dhital v. Nissan North America, Inc.</i>, <i>supra</i>, 84 Cal.App.5th at p. 838.) Here, the Complaint alleges that if Defendant Toyota had not fraudulently concealed the defect from her, she would not have entered into the relationship in the first place. (See Compl., ¶ 61.) The Complaint also pleads that, prior to Plaintiff acquiring the subject vehicle, Defendant Toyota was aware that the vehicle was defective and that it acquired this information from sources not available to consumers such as Plaintiff. (See <i>id.</i>, ¶¶ 54-58.) The Complaint also claims that Defendant Toyota was in a superior position to Plaintiff to know the truth about the defects and Plaintiff could not reasonably have been expected to discover the defects. (See <i>id.</i>, ¶ 59.) Finally, the Complaint asserts that Defendant Toyota concealed the defects from Plaintiff. (See <i>id.</i>, ¶¶ 53, 54, 57, 60.) These allegations are sufficient to support a duty to disclose under <i>Dhital v. Nissan North America, Inc.</i> Thus, the court will overrule the demurrer to the 6th Cause of Action on this basis. <u>Economic Loss Rule</u> "[T]he economic loss rule provides: [W]here a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only 'economic' losses." (<i>Robinson Helicopter Co., Inc. v. Dana Corp.</i> (2004) 34 Cal.4th 979, 988.) Thus, the economic loss rule precludes recovery of tort damages for a purely economic harm under these circumstances.
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		Defendant Toyota contends that the 6th Cause of Action is barred by the economic loss rule because Plaintiff's remedies lie in the contract to purchase the subject vehicle and not in a tort cause of action. Defendant Toyota again rely on the decision in <i>Rattagan v. Uber Technologies, Inc.</i> But even in that case, the Supreme Court stated that "the economic loss rule does not act as an <i>absolute</i> bar to tort recovery in every case in which the parties have a contractual relationship." (<i>Rattagan v. Uber Technologies, Inc., supra</i>, 17 Cal.5th at p. 23, italics original.) As <i>Rattagan v. Uber Technologies, Inc.</i> itself stated, the decision did not affect the case law in Song-Beverly cases which involved claims for fraudulent inducement. (See <i>id.</i> at p. 41, fn. 12.) Those cases, including this one, are still controlled by <i>Dhital v. Nissan North America, Inc.</i> (See <i>ibid.</i>) In <i>Dhital v. Nissan North America, Inc.</i>, the Court of Appeal acknowledged that "[t]he economic loss rule provides that, '[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage.'" (<i>Id.</i> at 837, quoting <i>Sheen v. Wells Fargo Bank, N.A.</i> (2022) 12 Cal.5th 905, 922.) However, the <i>Dhital v. Nissan North America, Inc.</i> stated that there was an exception to the economic loss rule for fraudulent inducement claims: Here, the fraudulent inducement exception to the economic loss rule applies. Plaintiff allege that Nissan, by intentionally concealing facts about the defective transmission, fraudulently induced them to purchase a car. Fraudulent inducement is a viable tort claim under California law. (<i>Id.</i> at p. 838; see also <i>id.</i> at p. 839 ["<i>Robinson [Helicopter Co., Inc. v. Dana Corp.</i> (2004) 34 Cal.4th 979] did not hold that any claims for fraudulent inducement are barred by the economic loss rule. Quite the contrary, the <i>Robinson</i> court affirmed that tort damages <i>are</i> available in contract cases where the contract was fraudulently induced."].)
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		As stated above, Plaintiff' allegations of fraudulent inducement in this case are nearly identical to those of Plaintiff in <i>Dhital v. Nissan North America, Inc.</i> (See Compl., ¶¶ 18-21, 65, 66-71.) Accordingly, the court will overrule the demurrer to the 6th Cause of Action on this basis. <u>Specificity</u> "Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made." (<i>Stansfield v. Starkey</i> (1990) 220 Cal.App.3d 59, 73, quoting <i>Roberts v. Ball, Hunt, Hart, Brown & Baerwitz</i> (1976) 57 Cal.App.3d 104, 109.) "This particularity requirement necessitates pleading <i>facts</i> which 'show how, when, where, to whom, and by what means the representations were tendered.'" <i>Stansfield v. Starkey, supra</i>, 220 Cal.App.3d at p. 73, quoting <i>Hills Trans. Co. v. Southwest</i> (1968) 266 Cal.App.2d 702, 707.) Defendant Toyota contends that the 6th Cause of Action sounds in fraud and that the Complaint fails to plead it with the requisite particularity. In addition, "[c]oncealment is a species of fraud, and '[] must be pleaded with specificity.'" (<i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 878, quoting <i>Linear Technology Corp. v. Applied Materials, Inc., supra</i>, 152 Cal.App.4th at p. 132.) Here, the Complaint alleges a generic list of defects but fails to identify what was allegedly wrong with Plaintiff's vehicle: "Defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to, engine defects, transmission defects, electrical defects; among other defects and non-conformities." (Compl., ¶ 12; see also, Complaint, ¶ 53-54, 65 [speaking generally about engine defect and what other persons may have suffered, but failing to allege specific defect was present in Plaintiff's vehicle and specific problems faced by Plaintiff].) As alleged, Plaintiff alleges apparent defects in 3.5L engines from other Toyota owners, without
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		specifically alleging what engine defects Plaintiff, itself, experienced. The court, therefore, finds that Plaintiff failed to allege the sixth cause of action for fraudulent inducement – concealment with the requisite specificity. Further, the Complaint fails to plead that Defendant Toyota acted with the intent to induce Plaintiff’s reliance. Thus, the court will sustain the demurrer to the 6th Cause of Action. <u>Leave to Amend</u> “It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action.” (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) However, it is the plaintiff's “burden to establish how the complaint can be amended to state a valid cause of action.” (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) At the same time, “for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint ‘shows on its face that it is incapable of amendment.’” (<i>Eghtesad v. State Farm General Insurance. Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 [“Only rarely should a demurrer to an initial complaint be sustained without leave to amend.”].) Here, Plaintiff has requested leave to amend and the demurrer was asserted against the original Complaint, such that Plaintiff has not had a prior opportunity to amend the Complaint. Therefore, the court will exercise its discretion and grant leave to amend.
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		The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Defendant Toyota shall give notice of this ruling.
4	Aparicio vs. Ocean View School District 30-2023-01345360	<u>Motion to Summary Judgment</u> There is no written tentative ruling on this matter. The court may give guidance orally and will hear from the parties or their counsel.
5	Fathollahi vs. Incipio, LLC 30-2023-01369765	<u>Motion for Leave to File Cross-Complaint</u> The Monroe Defendants' Motion for Leave to File Cross Claim to Plaintiffs' Second Amended Complaint is taken OFF CALENDAR as moot. Pursuant to the Stipulation and Order Granting Leave to File Cross Claim to Plaintiffs' Second Amended Complaint (ROA #294) filed August 27, 2025, the Monroe Defendants' Cross-Complaint to Plaintiffs' Second Amended Complaint (ROA #299) was filed on September 4, 2025.
6	Four Aces Remodeling, LLC vs. Always in Motion LLC 30-2024-01449453	<u>Motion to Be Relieved as Counsel</u> There is no written tentative ruling on this matter. The court may give guidance orally and will hear from the parties or their counsel.
8	Alvarez vs. Erdem 30-2025-01477279	<u>Motion to Be Relieved as Counsel</u> Counsel Christina F. Michael, Esq.'s Motion to Be Relieved as Counsel for Plaintiff Juan Alvarez is GRANTED

		Counsel Christina F. Michael, Esq. is ORDERED to submit a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly filled out, to the court within 10 days of this ruling. Within 15 days of receiving the signed Form MC-053 back from the court, Counsel Christina F. Michael, Esq. is ORDERED to serve Plaintiff Juan Alvarez with the signed Form MC-053 and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d). Counsel Christina F. Michael, Esq. shall be relieved as counsel of record for Plaintiff Juan Alvarez effective upon the filing of a proof of service showing timely service of the signed Form MC-053 and notice of this ruling. Counsel Christina F. Michael, Esq. remains and shall continue to act as counsel of record for Plaintiff Juan Alvarez. Counsel Christina F. Michael, Esq. is ORDERED to appear at the Case Management Conference and Order to Show Cause hearing set on March 19, 2026 at 10:00 a.m. in Department N15. <u>Pending Motion</u> Counsel Christina F. Michael, Esq. (Counsel) moves to be relieved as counsel for Plaintiff Juan Alvarez. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).)
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		However, “[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney’s Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, “[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers.” (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel “must be served on the client and on all other parties who have appeared in the case” and service must be made by “personal service, electronic service, or mail.” (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) “As used in this rule, ‘current’ means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.” (<i>Ibid.</i>) If the motion is served by electronic mail, “it must be accompanied by a declaration stating that the electronic service address is the client’s current electronic service address.” (Cal. Rules of Court, rule 3.1362(d)(2).)
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		The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue prejudice to the client's interests," (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding". (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by mail, after confirming that the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. Counsel also has declared a justifiable reason to be relieved as counsel — the failure of the client to respond to communications with Counsel since July 2025. In addition, there are no substantive hearings on calendar and trial has not been set. Thus, Plaintiff Juan Alvarez will have sufficient time to find new counsel and will not be unduly prejudiced in his ability to prepare for and try the case.
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		There is a case management conference and order to show cause hearing set for March 19, 2026. However, Counsel will still be counsel of record for Plaintiff on that date and the court will require Counsel to appear to represent Plaintiff. No opposition has been filed setting forth prejudice to Plaintiff Juan Alvarez or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman's Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 ["it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion"].) Therefore, the court will grant the motion to be relieved as counsel. Counsel shall give notice of this ruling in the manner ordered by the court.
9	Nava vs. Toyota Motor Sales, U.S.A., Inc. 30-2025-01499677	<u>Demurrer</u> Defendant Toyota Motor Sales, U.S.A., Inc.'s Demurrer to Plaintiff's Complaint is SUSTAINED with 15 days leave to amend as to the 6th Cause of Action. If Plaintiff Emmanuel Nava does not amend the Complaint for Violation of Statutory Obligations within the period of time stated above, Defendant Toyota Motor Sales, U.S.A., Inc. shall file an answer or other pleading in response to the remaining causes of action of the Complaint for Violation of Statutory Obligations within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j).) <u>Pending Motion</u> Defendant Toyota Motor Sales, U.S.A., Inc. (Defendant Toyota) demurs to the 6th Cause of Action of the Complaint for Violation of Statutory Obligations (Complaint) Filed by Plaintiff Emmanuel Nava.

		For the same reasons that the court sustains with leave to amend Defendant Toyota’s demurrer in Matter #3, <i>Terrell Thomson v. Toyota Motor Sales, U.S.A., Inc.</i>, et al, Case Number 30-2025-01498771, it does so here. <u>Motion to Strike</u> Defendant Toyota Motor Sales, U.S.A., Inc.’s Motion to Strike Plaintiff’s Prayer for Punitive Damages with 15 days leave to amend. If Plaintiff Emmanuel Nava does not amend the Complaint for Violation of Statutory Obligations within the period of time stated above, Defendant Toyota Motor Sales, U.S.A., Inc. shall file an answer or other pleading in response to the remaining causes of action of the Complaint for Violation of Statutory Obligations within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j).) <u>Pending Motion</u> Defendant Toyota Motor Sales, U.S.A., Inc. (Defendant Toyota) moves to strike the prayer for punitive damages contained in the Complaint for Violation of Statutory Obligations (Complaint) Filed by Plaintiff Emmanuel Nava. <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint may be
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		stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, punitive damages allegations or requests that lack factual foundation may be stricken from a complaint. (<i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63.) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) However, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).) "In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Striking Punitive Damages</u> To obtain punitive damages, a plaintiff must plead and prove one of the following: malice, oppression, or fraud. (See Civil Code, § 3294, subd. (a).) "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civil Code, § 3294, subd. (a)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civil Code, § 3294, subd. (a)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or
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		otherwise causing injury." (Civil Code, § 3294, subd. (a)(3).) Conduct carried on with a willful and conscious disregard of the rights or safety of others, but that is not "despicable," will not support an award of punitive damages. (<i>College Hospital Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 725.) "Despicable conduct" refers to circumstances that are so vile, base, or contemptible that it would be looked down on and despised by reasonable people. (<i>Ibid.</i>; <i>Scott v. Phoenix Schools, Inc.</i> (2009) 175 Cal.App.4th 702, 715.) Such conduct has been described as "having the character of outrage frequently associated with crime." (<i>Scott v. Phoenix Schools, Inc.</i>, <i>supra</i>, 175 Cal.App.4th at p. 715.) "Consequently, to establish malice, 'it is not sufficient to show only that the defendant's conduct was negligent, grossly negligent or even reckless.'" (<i>Bell v. Sharp Cabrillo Hospital</i> (1989) 212 Cal.App.3d 1034, 1044, quoting <i>Flyer's Body Shop Profit Sharing Plan v. Ticor Title Ins. Co.</i> (1986) 185 Cal.App.3d 1149, 1155.) "The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages. . . . Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210, citations and quotation marks omitted.) In order to survive a motion to strike, a complaint must not only allege in general terms oppression, fraud, or malice, but also plead ultimate facts in support. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim."], citations omitted; <i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255 ["In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff."].)
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		In addition, to recover punitive damages against a corporate defendant based on the acts of its employee, the plaintiff must plead facts showing that the employer "had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or [wrongful] act must be on the part of an officer, director, or managing agent of the corporation." (Civil Code, § 3294, subd. (b).) Here, the Complaint fails to plead that an officer, director or managing agent of the corporation was either personally guilty of malice, oppression, or fraud, or had advance knowledge of, authorized, or ratified an employee's acts of malice, oppression, or fraud. Defendant Toyota shall give notice of these rulings.
10	T.W. vs. Watchtower Bible and Tract Society of New York, Inc. 30-2022-01279911	<u>Motion to Be Relieved as Counsel</u> Counsel J. Kyle Gaines and Slater Slater Schulman, L.L.P.'s Motion to Be Relieved as Counsel for Plaintiff T.W. is GRANTED. Counsel J. Kyle Gaines and Slater Slater Schulman, L.L.P. is ORDERED to submit a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly filled out, to the court within 10 days of this ruling. Within 15 days of receiving the signed Form MC-053 back from the court, Counsel J. Kyle Gaines and Slater Slater Schulman, L.L.P. are ORDERED to serve Plaintiff T.W. with the signed Form MC-053 and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d). Counsel J. Kyle Gaines and Slater Slater Schulman, L.L.P. shall be relieved as counsel of record for Plaintiff T.W. effective upon the filing of a proof of service showing timely service of the signed Form MC-053 and notice of this ruling.

		<u>Pending Motion</u> Counsel J. Kyle Gaines and Slater Slater Schulman, L.L.P. (Counsel) move to be relieved as counsel for Plaintiff T.W.. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, "[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules of Court, rule 3.1362(e), italics original.) Motions to be relieved as counsel "must be served on the client and on all other parties who have appeared in the case" and service must be made by "personal service, electronic service, or mail." (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts
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		showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) "As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (<i>Ibid.</i>) If the motion is served by electronic mail, "it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue prejudice to the client's interests," (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to
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		withdraw “where such withdrawal would work an injustice or cause undue delay in the proceeding”. (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by mail, after confirming within the last 30 days that the address is the client’s current address. Counsel also has declared a justifiable reason to be relieved as counsel — the breakdown of the attorney-client relationship. In addition, there are no substantive hearings on calendar and trial is set for June 29, 2026. Thus, given that trial will not commence for more than 3 months, Plaintiff T.W. will have sufficient time to find new counsel and will not be unduly prejudiced in his ability to prepare for and try the case. In addition, Plaintiff T.W. may seek to continue the trial, if necessary to avoid prejudice. In any case, no opposition has been filed setting forth prejudice to Plaintiff T.W. or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman’s Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].) Therefore, the court will grant the motion to be relieved as counsel. Counsel shall give notice of this ruling in the manner ordered by the court.
11	Oseguera vs. West Coast Lodging, L.P. 30-2024-01371599	<u>Motion to Summary Judgment and/or Summary Adjudication</u> There is no written tentative ruling on this matter. The court will hear from the parties or their counsel.

12	Noland vs. Rancho Santiago Community College District 30-2024-01439464	<u>Motion for Writ of Mandate</u> There is no written tentative ruling on this matter. The court will hear from the parties or their counsel.
13	Runyon vs. Seeman 30-2024-01436627	<u>Motion to Consolidate</u> There is no written tentative ruling on this matter. The court will hear from the parties or their counsel. The court may continue this matter to allow Department N15 to consult with Department C13 regarding transfer of the cases to one department. In addition, the court may continue this matter to allow the parties to submit a stipulation and order to consolidate the cases for purposes of trial only.